

RLP No.

Appendix D: SAFETY, FIRE PROTECTION, AND ENVIRONMENTAL MANAGEMENT

1.1 GENERAL

1.1.1 PERMITS

Space must have a current occupancy permit issued by the local jurisdiction. Lessor shall obtain and maintain all necessary permits for operation of building services and equipment, including but not limited to fuel-fire mechanical equipment, emergency and standby generators, equipment to treat or exhaust toxic or hazardous gases, and solid or liquid wastes.

1.1.2 INSPECTIONS BY LESSOR

Lessor shall inspect, test, and maintain building systems, fire and life safety systems and equipment, as required by the more stringent of NFPA guidelines or local codes. Lessor shall submit documentation as acceptable to the Contracting Officer and/or VA COR of tests, report, and maintenance logs.

At minimum, systems and equipment for which inspections and reports are required include, but are not limited to, those systems as enumerated in NFPA 99, other applicable NFPA guidelines, and the following:

- Essential Electrical System
- Gas and Vacuum Systems
- Environmental Systems
- Fire Doors and Shutters
- Portable Fire Extinguishers
- Fire Suppression Systems
- Standpipe Systems
- Fire Detection and Alarm Systems

1.1.3 INSPECTIONS BY GOVERNMENT

The government reserves the right to conduct independent inspections, testing, assessments, and detailed studies in space it occupies, as well as in space serving the VA leased space (e.g. common use areas, mechanical rooms, HVAC systems, etc.). The Lessor shall assist VA in its assessments and detailed studies by making available information on building operations and Lessor activities, and providing access to space for assessment and testing, if required. These may include, but are not limited to, noise and vibration testing, water and air quality sampling, water, and air sampling for pathogens, Legionella cultures and copper/silver analysis, radon testing, mold testing, Facility Condition Assessments of building systems and equipment, etc. Work may be performed by independent consultants, or VA personnel.

Lessor shall implement corrective measures required by the Contracting Officer.

2.0 CODE VIOLATIONS

Equipment, services, or utilities furnished, and activities of other occupants, shall be free of safety, health, and fire hazards. When hazards or code violations are detected, they must be

promptly correct at the Lessor's expense. Where requirements conflict, the decision of the Contracting Officer shall be final.

3.0 SPECIAL ENVIRONMENTAL REQUIREMENTS

3.1.1 INDOOR ENVIRONMENT

Lessor shall maintain building envelope and building systems in good repair. Excess or uncontrolled water can damage interior finishes, furnishings, or equipment and can contribute to the growth of mold and other pathogens. Lessor shall take precautions in design, construction, operation, and maintenance of the facility to control the entry of water from outside sources or leaks from building systems.

Lessor shall promptly repair any leaks and replace damaged materials or finishes. If mold or other pathogens are discovered, Lessor shall be responsible for remediation.

3.1.2 SPECIAL BUILDING EQUIPMENT

Special building equipment required to treat and exhaust to the atmosphere toxic gases produced by the agency program equipment shall be maintained in proper operating condition. Maintain all such installations in compliance with appropriate OSHA, EPA, or related regulations of the local community.

Lessor shall obtain operating permits as required by EPA and local Authorities Having Jurisdiction for the operation of exhaust-producing generators and building air and water heating equipment.